

HOUSE No. 4531

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, September 16, 2025.

The committee on Ways and Means, to whom was referred the message from Her Excellency the Governor submitting requests for making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects (House, No. 4429) reports, in part, recommending that the accompanying bill (House, No. 4531) ought to pass.

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the 2026 state primary election date.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to forthwith establish the date of the 2026 state primary election, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding section 3 of chapter 53 of the General Laws or any other
2 general or special law to the contrary, a person whose name is not printed on the September 1,
3 2026 state primary ballot as a candidate for an office, but who receives sufficient votes to
4 nominate the person for the office, shall file in the office of the state secretary a written
5 acceptance of the nomination and a receipt from the state ethics commission verifying that a
6 statement of financial interest has been filed pursuant to chapter 268B of the General Laws not
7 later than 5:00 P.M. on Thursday, September 3, 2026.

8 SECTION 2. Notwithstanding sections 11, 13 and 53A of chapter 53 of the General Laws
9 and section 5 of chapter 55B of the General Laws or any other general or special law to the
10 contrary, objections to and withdrawals from nominations made at the September 1, 2026 state

primary shall be filed with the state secretary not later than 12:00 P.M. on Friday, September 4, 2026.

SECTION 3. Notwithstanding section 14 of chapter 53 of the General Laws or any other general or special law to the contrary, any vacancies from the September 1, 2026 state primary caused by death, withdrawal or ineligibility under section 2 shall be filled by an executive committee, determined by the state party committee, of the same political party who made the original nomination.

SECTION 4. Notwithstanding section 15 of chapter 53 of the General Laws or any other general or special law to the contrary, when a nomination is made to fill a vacancy caused by the death, withdrawal or ineligibility of a candidate from the September 1, 2026 state primary, the certificate of nomination shall be on a form prescribed by the state secretary, shall be signed by the executive committee appointed by the state committee of the same political party as provided for in section 3 and shall be filed with the state secretary not later than 5:00 P.M. on Tuesday, September 8, 2026.

SECTION 5. Notwithstanding section 28 of chapter 53 of the General Laws or any other general or special law to the contrary, the state primary in 2026 shall be held on Tuesday, September 1, 2026.

SECTION 6. (a) Notwithstanding section 135 of chapter 54 of the General Laws or any other general or special law to the contrary, a petition for a recount of the September 1, 2026 state primary shall be filed with the appropriate local election officials not later than 5:00 P.M. on Thursday, September 3, 2026 and all recounts shall be completed and notice of the results shall be sent to the state secretary not later than 5:00 P.M. on Friday, September 11, 2026.

(b) Petitions for district wide and statewide recounts of the September 1, 2026 state primary shall be submitted to the appropriate local election officials for certification not later than 3:00 P.M. on Thursday, September 3, 2026 and local election officials shall complete certification not later than 12:00 P.M. on Friday, September 4, 2026. Thereafter, certified petitions shall be filed with the state secretary not later than 5:00 P.M. on Friday, September 4, 2026. If the state secretary determines that the contest is eligible for a statewide or district wide recount, the state secretary shall notify the local election officials who shall complete the recount and shall notify the state secretary of the results of the recount not later than 5:00 P.M. on Friday, September 11, 2026.

(c) Notwithstanding section 135 of chapter 54 of the General Laws, a board of registrars shall only provide 2 days' notice of the date, time and location of the recount to each candidate for the office for which the recount has been petitioned. Electronic notice shall be sufficient.

SECTION 7. Notwithstanding sections 8 to 10, inclusive, of chapter 55B of the General Laws or any other general or special law to the contrary, the state ballot law commission shall notify candidates of any objections filed to nominations at the September 1, 2026 state primary not later than 5:00 P.M. on Friday, September 4, 2026. Notice of the commission hearings shall be given by telephone and electronic mail. Hearings on objections shall be held on Wednesday, September 9, 2026 and decisions shall be rendered not later than 5:00 P.M. on Friday, September 11, 2026.

SECTION 8. Notwithstanding any general or special law to the contrary, local election officials shall transmit absentee ballots to voters covered under the federal Uniformed and Overseas Citizens Absentee Voting Act, 42 U.S.C. §§ 1973ff-1 et seq., whose applications were

55 received at least 45 days before the November 3, 2026 state election, not later than Saturday,
56 September 19, 2026.

57 SECTION 9. Notwithstanding any general or special law to the contrary, the state
58 secretary may add or change any dates relating to the nominations made at the September 1,
59 2026 state primary that the state secretary considers necessary for the orderly administration of
60 the November 3, 2026 state election by providing notice of the change to the state parties and
61 any affected person, by filing notice with the publications and regulations division, by posting on
62 the state secretary's website and by whatever other means the state secretary considers
63 appropriate.